
BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

In the Matter of the Application for	)	
Mental Health Counselor Licensure of	)	
	)	LICENSURE BY CONSENT
CHRISTY MEYER,	)	AGREEMENT
Applicant	)	

COME NOW the Iowa Board of Behavioral Science (“Board”) and Christy Meyer (“Applicant”) and, pursuant to Iowa Code section 17A.10 (2015) and 645 IAC 12.1, enter into this Licensure by Consent Agreement (“Agreement”), stating as follows:

1. Applicant applied for licensure as a mental health counselor in Iowa.
2. Applicant answered yes to the question on her application asking whether she had been disciplined or sanctioned by any licensing, registration, or certification authority or organization related to her professional practice.
3. The following is a summary of Applicant’s prior discipline:
 - a. In January of 2012, the State of Nebraska filed a Petition for Disciplinary Action against Applicant’s Nebraska mental health license, alcohol and drug counseling license, and professional counseling certificate, based on the following allegations: failing to keep and maintain adequate records of treatment or service, failing to report termination of employment when required, allowing a dual relationship with a client, developing a business or personal relationship with a client, texting during therapy sessions, and falling asleep during therapy sessions.
 - b. On February 9, 2012, the State of Nebraska adopted an Agreed Settlement, which placed Applicant’s Nebraska mental health license, alcohol and drug counseling license, and professional counseling certificate on probation for two years, subject to monitoring, coursework requirements, and notification obligations. In the Agreed Settlement, Applicant admitted the allegations contained in the Petition for Disciplinary Action.
 - c. In February of 2013, the State of Nebraska filed a Petition for Disciplinary Action and Petition to Revoke Applicant’s Probation based on the following allegations: failing to keep and maintain adequate records of treatment or service, failing to report termination of employment when required, engaging in unprofessional conduct, and violating the terms of her probation.
 - d. On February 28, 2013, the State of Nebraska adopted an Agreed Settlement in which Applicant admitted the allegations contained in the

Petition for Disciplinary Action and Petition to Revoke Applicant's Probation and agreed to voluntarily surrender her credentials to practice as a mental health practitioner, alcohol and drug counselor, and professional counselor in the State of Nebraska for a minimum period of two years.

4. The Board has the authority to deny an application for licensure on any ground for which a license may be revoked or suspended. Iowa Code section 147.4.

5. The Board has the authority to discipline a licensee if the licensee has had disciplinary action taken by a licensing authority of another state. 645 Iowa Administrative Code 33.2(14).

6. **THEREFORE, IT IS HEREBY ORDERED** that Applicant shall be issued an Iowa license to practice mental health counseling, which shall be placed on **PROBATION** for a minimum period of two (2) years. The following requirements are applicable throughout the probationary period:

- a. Applicant shall complete two (2) years of monitored practice before being released from probation. Prior to beginning practice monitoring, Applicant shall submit a proposed practice monitor and practice monitoring plan to the Board for approval within thirty (30) days of Board approval of this Agreement. The proposed practice monitor shall be an Iowa licensed mental health counselor. Practice monitoring shall commence upon Board approval of the practice monitor and the practice monitoring plan. Applicant shall provide her practice monitor with a copy of this Agreement and with copies of all Nebraska disciplinary documents. Applicant shall meet with the practice monitor on a weekly basis during the probationary period to discuss areas for improvement, Board rules, hypothetical ethical issues, and ethical issues that may arise in Applicant's practice. The practice monitor shall review the records and treatment of at least 10% of the clients who were seen by Applicant in the prior week. Applicant shall maintain a list of the clients that she sees each week, and the practice monitor shall have a system in place for making a random selection of client records for review each week. The practice monitor shall explain the system used to select client records for review in the first quarterly report. Applicant must secure all necessary written releases from clients to allow the Board-approved practice monitor to review the client's treatment record and discuss the client's treatment plan with Applicant. Applicant's practice monitor shall submit quarterly reports to the Board describing the dates of the monitoring meetings held with Applicant, a summary of the discussion held at each meeting, Applicant's compliance with this Agreement, the practice monitor's recommendations for further mentoring and monitoring, if any, and any other information the practice monitor deems relevant for the Board's review. Said quarterly reports are due on January 5, April 5, July 5, and October 5 of each calendar year during the probationary period. Applicant is responsible for all costs associated with practice monitoring.

- b. Applicant shall appear before the Board upon request, for the purpose of reviewing her performance as a mental health counselor during the probationary period. Applicant shall be given reasonable notice of the date, time, and place for such appearances.
- c. Applicant shall comply with all laws and rules governing the practice of mental health counseling.

7. Applicant shall fully and promptly comply with this Agreement. In the event Applicant violates or fails to comply with the terms and provisions of this Agreement, the Board may initiate appropriate action to revoke or suspend Applicant's license or to impose other licensee discipline in accordance with Iowa Code section 272C.3(2)(a).

8. Applicant understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

9. Applicant acknowledges that this Agreement is subject to the approval of a majority of the Board. If the Board fails to approve this Agreement, it shall be of no force or effect to either party.

10. By entering into this Agreement, Applicant voluntarily waives any right to a contested case hearing regarding this matter. Once entered, this Agreement shall have the force and effect of a Board order entered following a contested case hearing.

11. Applicant acknowledges she has read this Agreement in its entirety, understands its content, and has executed this Agreement freely and voluntarily.

12. Applicant acknowledges she has the right to be represented by counsel on this matter.

13. Applicant understands this Consent Agreement is a public record available for inspection and copying in accordance with Iowa Code chapter 22.

This Licensure by Consent Agreement is voluntarily submitted by Applicant to the Board for its consideration on the 16 day of December, 2015.


CHRISTY MEYER
Applicant

This Licensure by Consent Agreement is approved by the Iowa Board of Behavioral Science on the 16 day of December, 2015.

Earl Dantel, MA, LMHC

Chairperson
Iowa Board of Behavioral Science

Copy to:

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